

# HOUSE . . . . . No. 4400

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Richard G. Wells, Jr. and Bruce J. Ayers***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the charter of the city known as the town of Randolph.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:  | DATE ADDED:     |
|------------------------------|--------------------|-----------------|
| <i>Richard G. Wells, Jr.</i> | <i>7th Norfolk</i> | <i>8/5/2025</i> |
| <i>Bruce J. Ayers</i>        | <i>1st Norfolk</i> | <i>8/5/2025</i> |

# HOUSE . . . . . No. 4400

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By Representatives Wells of Milton and Ayers of Quincy, a petition (accompanied by bill, House, No. 4400) of Richard G. Wells, Jr., and Bruce J. Ayers (with the approval of the town council) relative to the charter of the city known as the town of Randolph. Municipalities and Regional Government. [Local Approval Received.]

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the charter of the city known as the town of Randolph.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. The charter of the city known as the town of Randolph, which is on file in  
2 the office of the archivist of the commonwealth, as provided in section 12 of chapter 43B of the  
3 General Laws, is hereby amended by deleting the words “shall serve without” from Section 2-  
4 4(a) and replacing those words with the following: “may receive”. Said Section 2-4(a) is further  
5 amended by adding the words “as provided by ordinance” at the end of subsection (a).

6           SECTION 2. Said charter is hereby further amended by adding the words “, and may  
7 receive compensation as provided by ordinance” after the word “duties” in Section 4-1(e).

8           SECTION 3. Said charter is hereby further amended by deleting the second paragraph of  
9 Section 2-9(b) and replacing it with the following:

10           On the first occasion that the question of adopting any measure is put to the town council  
11 for a vote, except an emergency measure as defined in subsection (a), if a single member objects

12 to the taking of a vote, the vote shall be postponed until the next regular or special meeting of the  
13 town council. If, when the matter is next taken up for a vote, 4 or more members object to the  
14 taking of the vote, the matter shall be further postponed for at least 4 additional days. This  
15 procedure shall not be used more than once for any measure, notwithstanding any amendment  
16 made to the original measure.

17 SECTION 4. Said charter is hereby further amended by deleting Section 2-6(c)(ii) and  
18 replacing it with the following:

19 Special meetings of the town council shall be held at the call of the council president  
20 upon 48 hours' notice to all members. Special meetings of the town council may also be held  
21 upon the call of any 3 or more members, upon 48 hours' notice delivered in hand or to the place  
22 of residence of each member. Notice of a special meeting shall contain a listing of the items to be  
23 acted upon. A copy of the notice to members shall, forthwith, be posted upon the town bulletin  
24 board. In the case of emergency, notice of a special meeting shall be given as far in advance of  
25 the meeting as possible under the circumstances.

26 SECTION 5. Said charter is hereby further amended by deleting Section 8-6(a) and  
27 replacing it with the following:

28 Meetings - All multiple-member bodies of the town shall meet regularly at such times  
29 and places as they may, by their own rules, prescribe, unless some other provision is made by  
30 ordinance. Special meetings of any multiple-member body shall be held at the call of the chair  
31 upon 48 hours' notice to all members. Special meetings may also be held upon the call of one-  
32 third of the members of the body, upon 48 hours' notice delivered in hand or to the place of  
33 residence of each member. Notice of a special meeting shall contain a listing of the items to be

acted upon. A copy of the notice to members shall, forthwith, be posted upon the town bulletin board. In the case of emergency, notice of a special meeting shall be given as far in advance of the meeting as possible under the circumstances.

SECTION 6. The town attorney shall cause the following question to be placed on the official ballot to be used in the city known as the town of Randolph at the next town election that is more than 35 days after the effective date of this act, or on such other official town ballot, before or after the effective date of this act, as may be authorized by the Town Council:

“Question 1: Shall the town amend the town charter to provide that elected town council members and school committee members may be compensated in an amount to be provided by ordinance, to clarify the rules for voting on town council measures when one councilor objects to the measure, and to clarify the notice requirements for special meetings of the town council and other multiple-member town boards?

Yes \_\_\_\_\_ No \_\_\_\_\_”.

The town attorney for the city known as the town of Randolph shall prepare a summary of the ballot question which shall appear on the ballot along with the question provided in this section.

SECTION 7. (a) If the voters in the city known as the town of Randolph approve question 1 in section 6, then sections 1 through 5 shall take effect.

(b) If the voters in the city known as the town of Randolph do not approve question 1 in section 6, then sections 1 through 5 shall not take effect.

54           SECTION 8. Sections 1 through 5 of this act shall take effect on January 1, 2026 or upon  
55   the passage of the act, whichever is later. Sections 6-8 of this act shall take effect upon the  
56   passage of the act.